

2026:PHHC:087055



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IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

CRM-M-32702-2026 (O&M)
DECIDED ON: 09.06.2026

MANPREET SINGH

.....PETITIONER(S)

VERSUS

STATE OF PUNJAB

...RESPONDENT(S)

CORAM: HON'BLE MR. JUSTICE SANDEEP MOUDGIL

Present: Mr. H.S.Sidhu, Advocate for the petitioner(s)
Mr. Yatin Bunker, AAG, Punjab.

SANDEEP MOUDGIL, J (ORAL)

1. Prayer

This first anticipatory bail petition under Section 482 of BNSS, 2023 (Erstwhile Section 438 of Cr.P.C.) for grant of anticipatory bail to the petitioner in FIR No. 531 dated 11.12.2024 under Sections 118(2), 115(2), 118(1) and 3(5) BNS, (earlier 325,326,323 and 34 of IPC) Police Station Goindwal Sahib, District Tarn Taran (Annexure P-1).

2 Contention**On behalf of the petitioner**

At the outset, learned counsel for the petitioner submits that there is unexplained delay of 56 days in registration of the instant FIR since the alleged occurrence took place on 16.10.2024 and the FIR was registered on 11.12.2024. He further contends that the petitioner was even not present at the place of occurrence as he was at his in-law's house which can be verified by witness testimonies. He has argued that it is a case of version and cross version between the parties.

Notice of motion.

On behalf of the State/complainant

On the asking of Court, Mr. Yatin Bunker, AAG, Punjab, accepts notice on behalf of respondent/State.

Status Report by way of affidavit of Harinder Singh, PPS, Deputy Superintendent of Police, Sub Division Khadur Sahib, Camp at Goindwal Sahib, District Tarn Taran, has been filed on behalf of respondent i.e. State of Punjab in compliance with order dated 03.06.2026, the same is taken on record.

He opposes the prayer for grant of anticipatory bail to the petitioner stating that the petitioner gave kirpan blow to the complainant which hit above his left eyebrow on his forehead and then complainant raised his right arm to ward off another blow which hit on his right arm and that injury was declared to be serious in nature.

3. Analysis

Be that as it may, having given due consideration to the submissions advanced, particularly to the fact that the instant case is a version and cross

version, the presence of the petitioner at the spot of alleged occurrence is itself in dispute which needs to be testified before proceeding further, and the fact that the petitioner is ready to join the investigation, this Court finds no valid or cogent reason to deny the bail to the present petitioner, wherein he has *bona fide* intentions and is ready and willing to join the investigation and cooperate for furtherance of the same so that the final report can be submitted by the Investigating Agency in time.

4. **Relief:-**

Hence, the petitioner is directed to be released on anticipatory bail subject to his joining investigation with the Investigating Officer concerned within a period of one week from today, on furnishing of personal/surety bonds to the satisfaction of Arresting Officer/Investigating Officer. The petitioner shall also abide by the terms and conditions as envisaged under Section 482(2) of BNSS, which are reproduced below:-

‘When the High Court or the Court of Session makes a direction under sub-section (1), it may include such conditions in such directions in the light of the facts of the particular case, as it may think fit, including-

(i) a condition that the person shall make himself available for interrogation by a police officer as and when required;

(ii) a condition that the person shall not, directly or indirectly, make any inducement, threat or promise to any person acquainted with the facts of the case so as to dissuade him from disclosing such facts to the Court or to any police officer;

(iii) a condition that the person shall not leave India without the previous permission of the Court;

(iv) such other condition as may be imposed under sub-section (3) of section 480, as if the bail were granted under that section.’

However, it is made clear that in case the petitioner does not comply with the aforesaid direction of joining the investigation within a period of one week, the order passed by this Court today shall automatically stands cancelled.

In the aforesaid terms, the present petition stands allowed.

09.06.2026
anuradha

(SANDEEP MOUDGIL)
JUDGE

<i>Whether speaking/reasoned</i>	<i>:Yes/No</i>
<i>Whether reportable</i>	<i>:Yes/No</i>